

the trustees be authorised and *required*, at the instance of the tenant for life, to invest the trust fund in a *purchase* of leaseholds, they have no option if the tenant for life insist upon his right (c).

59. **Copyholds.** — There can be no objection to *copyholds* as a real security, but the trustee should of course take care that they are of adequate value, and not rely on the mere covenant to surrender, but procure an actual surrender (d).

60. **Mortgage of an undivided share or of a reversion.** — There does not appear to be any absolute objection to a loan by trustee on the security of an *undivided share* or of a *reversion*; but they must not advance more than the proper proportion (a third or a half, according to the nature of the property), of the value of the undivided share, or of the reversion as such, that is, the *present value of the future interest*, and in taking securities of this kind a full power of sale would be an essential provision.

61. **Lending on real security in Ireland.** — Where trustees are expressly authorised to lend on real securities in England, Wales, or Great Britain, they are empowered by 4 & 5 Will. 4, c. 29, to lend on real securities in *Ireland*. But the second section enacts, that all loans in which any *minor, unborn child, or person of unsound mind* is interested, shall be made by the direction of the Court of Chancery, to be obtained *in any cause, or (e) upon petition* in a summary way.

Upon an application to the Court under this Act, for the investment of a fund in Court upon an Irish security, Lord Langdale, * M. R., refused even a reference as to [*329] the propriety of such a step; for though it would be beneficial to the tenant for life as increasing the annual produce, it was not so safe a security as regarded the remaindermen, and it was the duty of trustees to act impartially for the benefit of *all* parties alike (a). And Lord Justice Knight

(c) *Cadogan v. Earl of Essex*, 2 Drew. 227; *Beauclerk v. Ashburnham*, 8 Beav. 322; see *ante*, p. 316.

(d) See *Wyatt v. Sharratt*, 3 Beav. 498.

(e) *Ex parte French*, 7 Sim. 510.

(a) *Stuart v. Stuart*, 3 Beav. 430.